

CV-25-006085 BANK OF AMERICA NA vs VASQUEZ, MATTHEW C - Plaintiff's Motion to Tax Costs - GRANTED in the amount of \$30.

County: stanislaus

Division: Civil Law and Motion

Department: 21

Hearing date: 2012-04-02

Motion: The motion is GRANTED in the amount of \$30.00, reducing costs to \$400. The filing and service fees requested by Defendant are allowable pursuant to Code of Civil Procedure section 1033.5. Plaintiff filed a request for dismissal without prejudice on July 23, 2026, and dismissal was entered the same day. Defendant subsequently served on Plaintiff a memorandum of costs, dated July 30, 2026. On August 27, 2026, Plaintiff filed a motion to tax costs arguing that Defendant should be awarded only \$225.00 of the \$430.00 requested on Defendant's memorandum of costs. The arbitration motion was not arguably meritorious and was based on incorrect factual assertions. As such, the \$30 filing fee is taxed. Service costs are not taxable.

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